

The legal framework for judicial review

In Topic 1, reference was made to the fact that administrative law originated in English common law. That body of law, the theory goes, reached Australia with the early settlers, with the result that it became integrated into the Australian legal system.

Reference was also made to the fact that in its evolution during the course of the twentieth century, general law judicial review of administrative decisions in the first half of that century were ad hoc, costly and complex, particularly in the area of the prerogative writs, and that this perception ultimately led to setting up what is commonly referred to as the ‘Kerr Committee’, to examine the then status quo and to make recommendations on how the difficulties could be identified and remedied.

The Committee completed this review, and tribunals and other statutory bodies were set up as a result. One of the outcomes of the Committee’s recommendations was the enactment of the Administrative Decisions (Judicial Review) Act 1977 (Cth), referred to as the ADJR Act, which essentially codified the common law grounds on which judicial review may be applied for, and simplified the procedure by which remedies could be obtained. The grounds for judicial review, which are discussed below, are therefore, as a general rule, common to both types of judicial review, the procedure having been streamlined and made more flexible under the ADJR Act.

Irrespective, therefore, of whether the judicial review takes place under the general common law or pursuant to the provisions of the Administrative Decisions (Judicial Review) Act, the considerations and grounds discussed below, should be considered as applicable to both.

As mentioned in the previous topic, general law judicial review evolved from the remedies which could be granted by the English (and later, Australian) superior courts to an aggrieved party as a result of conduct exercised by a decision-maker which exceeded the law’s expectations and intent. In such circumstances, the person affected by a decision could apply to the court for the granting of one of the prerogative writs of certiorari, mandamus or prohibition—the first being used for the purpose of quashing a decision, the second to mandate the making of a decision or the exercise of a power, and the third essentially to prevent the making of a wrongful decision. These remedies, however, were costly and complex, with the result that if the wrong writ was applied for, despite the fact that a genuine grievance existed, the plaintiff’s action would fail.

One other factor to bear in mind, in regard to these general law remedies, is that at the same time and parallel with determining whether it was appropriate to grant any one or other of the remedies, the criteria for the use of the writs was being developed. These criteria, which presently form the basis of a request for judicial review, will be discussed in subsequent topics.

In addition to the above general law jurisdiction, the courts also had the power to grant equitable remedies—those of the making of a declaration (as to the rights and obligations of the parties) and of the granting of an injunction (an order requiring one of the parties to refrain from behaving in a particular way). The issue of remedies, both under the general law and statute, will be considered separately under the topic entitled: The Issue of Standing and Remedies.

Common law judicial review - The Courts' jurisdiction

Section 75 (v) of the Australian Constitution provides the High Court of Australia with the legal authority and jurisdiction to grant the prerogative writs of mandamus, prohibition and the equitable remedy of injunction. It says:

In all matters: (v) in which a writ of mandamus or prohibition or an injunction is sought against an officer of the Commonwealth; the High Court shall have original jurisdiction.

Although these are prerogative writs, they are called constitutional writs. It is important to note, too, that the jurisdiction under s 75(v) cannot be excluded. In addition, s 32 of the Judiciary Act 1903 (Cth), gives the High Court the power to grant 'all such remedies...as any of the parties...are entitled to in respect of any legal or equitable claim...'. The effect of this provision is to provide the High Court with the power to grant any of the prerogative writs not mentioned in s 75(v) of the Australian Constitution, namely those of certiorari and declaration. It has been held that s 32 should be construed liberally: *Roberts v Gippsland Agriculture and Earth Moving Contracting Co Pty Ltd* [1956] VLR 555 at 564-5. The settled effect of the section, it appears, is that 'whenever a subject of controversy arises in an action which can conveniently be determined between the parties to the action, the court should, if possible, determine it so as to prevent further and needless litigation': *In the Goods of Tharp* (1878) 3 PD 76 at 81. Having said that, however, s 75(v), it will be seen later, allows certiorari against an officer of the Commonwealth implicitly but only if a ground for the other relief it mentions is made out. Thus, certiorari and declarations may be granted, not as an original remedy but as a remedy which may be required in order to give effect to the granting of a writ referred to in s 75(v). When combined with the provisions of s 44(2A) of the Act, (which allows the High Court the power to remit any case it is able to hear in its original jurisdiction, to the Federal Court for hearing), the net effect is to confirm and enable both the High Court or the Federal Court the jurisdiction to grant such general law remedies and to allow the High Court to remit such matters for the Federal Court to hear, as and when appropriate.

On a State level, the superior Courts have inherent jurisdiction to grant the prerogative writs, as well as common law and equitable remedies, and are not subject to the same constitutional constraints which exist at Commonwealth level: see, for example, s 85 of the Constitution Act 1975 (Vic), which provides the courts with such general power as is 'necessary for the administration of justice'.

Activity

Exercise 5.1

What is the relevance of s 75 (v) of the Australian Constitution with regard to the prerogative writs?

Exercise 5.2

Discuss the role played by the prerogative writs in the area of judicial review. To which type of review do they relate?

The concept of justiciability refers to the question of whether the court is capable of considering a matter. Justiciability raises two separate but related questions.

The first is whether a decision or controversy is amenable to judicial determination: in other words, whether the court can resolve the case. Today this is rarely a problem in public law

litigation, but courts can still hesitate to become involved in cases that involve competing policy considerations. The second question is whether a decision or controversy should be resolved by a court, for example, where a court would have to consider the competing merits of many claimants for a limited resource, such as a limited number of fishing licences.

When a court pronounces a matter to be non-justiciable it is expressing a conclusion to one or both of these questions. Once justiciability is understood in this way, the important task is to establish what considerations may lead a court to conclude that a matter is/is not justiciable. Historically, these considerations have included: the status of the decision-maker; the source of the power exercised (prerogative versus statute); and the nature of the power and what is involved in its exercise.

Activity

Exercise 5.3

How does the court deal with the question of justiciability in *Re McBain; ex parte Australian Catholic Bishops Conference* (2002) 209 CLR 372?

Exercise 5.4

What contribution does *FAI Insurances v Winneke* (1982) 151 CLR 342, *Minister for Arts, Heritage and Environment v Peko-Wallsend Ltd* (1987) 75 ALR 218 make to the concept of justiciability?

Statutory Review

At federal level, the passing of the Administrative Decisions (Judicial Review) Act 1977 (Cth), gave rise to another method of achieving judicial review, namely, statutory review.

In this regard, particular attention should be paid to the provisions of ss 3, 5, 6, 7, 10, 15 of the Act because they provide important insights into the meaning attributed to certain terms, the relationship those terms bear to the types of decisions which may be reviewed, and the circumstances under which an application may be made for review.

Section 5 provides that the Federal Court has jurisdiction to review a ‘decision to which this Act applies’. Section 7 includes within the meaning of a ‘decision’, a failure to make such a decision.

Section 3(1) says that the expression ‘decision to which this Act applies’ means ‘a decision of an administrative character made, proposed to be made, or required to be made...’ either ‘under an enactment’ or by a specified Commonwealth authority or officer. Excluded decisions include any decisions of the Governor-General. A definition (of sorts) of ‘making a decision’ appears in s 3(2).

The meaning attributed to each one of these terms is significant. In relation to the first (‘administrative character’), the decisions in *Federal Airports Corporation v Aerolineas Argentinas* (1997) 147 ALR 649 and *Roche Products Pty Ltd v National Drugs and Poisons Schedule Committee* (2007) 163 FCR 451 are relevant and should be considered. In the first of these cases, the court warned that the guidelines are exactly that, and that their application is not definitive as to the decision which should be reached by the court when using them. In the second of the cases, the court discusses, amongst other things, the distinction between ‘legislative’ and ‘administrative’. Aside from these authorities, it has been held (in relation to

the Judicial Review Act 2000 (Tas)) that the expression ‘decision of an administrative character’ should be given a wide construction: *Medical Council of Tasmania v Medical Complaints Tribunal* [2005] TASSC 24 at [11]-[13].

With regard to the second and third, consider in particular, the decision of *Australian Broadcasting Tribunal v Bond* (1990) 110 CLR 321 where the court held that with the exception of one matter, certain findings made by the ABT did not constitute a ‘decision’ within the meaning of the section, and *Edelstein v Health Insurance Commission* (1990) 96 ALR 673 where the court reached the same conclusion. The decision (‘decision’ and ‘conduct’) in *Kelson v Forward* (1995) 60 FCR 39, on the other hand, provides an informative comparison because in that decision the court reached the opposite conclusion.

The final requirement of s 3 (‘under an enactment’) is discussed in *Griffith University v Tang* (2005) 221 CLR 99 where the decision made by the University to exclude a student was held not to have been made pursuant to the provisions of an ‘enactment’

Sections 5 and 6 set out the grounds on which an application for judicial review may be made. The grounds are many and varied as are the remedies which may be granted by the Court under s 16 if one or more of the grounds is or are established. The importance of these provisions in the preceding sub sections lies in the fact that the aggrieved person no longer needs to stipulate the relief required and that such relief is listed in s 16 as within the jurisdiction of the Court to grant. One further point of significance is that the grounds for statutory challenge represent a codification of the general law grounds for judicial review and in the paragraphs below, these grounds will be considered as a basis for such review.

Section 10 provides that the rights available under the Act are in addition to any other right which may be available to an aggrieved party, and therefore, for example, if other avenues of relief are provided in a relevant enactment, the Court may refuse to grant relief under the Act until the alternative avenues have been exhausted.

Section 15 warns that the operation of the decision from which review is sought does not cease or fail to take effect simply because an application has been made to the Federal Court for statutory judicial review. If suspension of the original decision is required, an application must be made for the Court for a ‘stay’—which is an order to that effect.

Finally, the provisions of s 16 of the Act, which set out the grounds for statutory judicial review, should be considered carefully and particular emphasis should be placed on those of s 16(1)(d). This section empowers the Court to grant an order requiring a party to do ‘any act or thing...which the Court considers necessary to do justice between the parties’.

The effect of these provisions has raised the issue of whether their broad and general wording gives the Court power to exceed the general threshold and constraints of judicial review or whether they empower the Court, in the appropriate circumstances, to substitute its own decision for that of the original decision-maker. The question of whether this section does give the Court such power, is considered below under the heading of Limitations on Judicial Review.

At State level, the Administrative Law Act 1975 (Vic), applies in similar, but not identical ways, to its Commonwealth counterpart. It achieved similar objectives in that it streamlined the review procedure of a ‘tribunal’, which had made an administrative decision. The courts are granted similar jurisdiction with respect to the granting of prerogative writs and common law and equitable remedies and indicates that the relief available under the Act is in addition to, not in lieu of, other relief which may be available to an aggrieved party in given

circumstances. Finally, like its Commonwealth counterpart, the Act also enables a party to request written reasons for the making of the original decision.

Activity

Exercise 5.5

What is the importance of the provisions of ss 32 and 44(2A) of the Judiciary Act 1903 (Cth)? Discuss and explain.

Exercise 5.6

Discuss the provisions of ss 3,5,6,7,10,15 and 16 of the Administrative Decisions (Judicial Review) Act 1977 (Cth) and the role they play in statutory judicial review.

Judicial review and review on the merits - Distinction: The limitations of judicial review

In Topic 1, mention was made of the difference between these two methods of review (judicial review and merits review) and emphasis was placed on the fact that this distinction determined whether, in a particular set of circumstances, it was possible for a court to investigate the merits of a decision made, and in the appropriate circumstances, substitute its own decision for that originally made by the decision-maker. It was also mentioned that this power, to substitute a decision for that of the original decision-maker, was only possible where review on the merits was being undertaken. It was not possible in the area of judicial review. This distinction is obviously of importance in this topic and it should be borne in mind, that, although the area of judicial review has been significantly improved and streamlined, the power of substitution of one decision for another is generally, and with some exceptions, (see, for example, the decisions of *Liversidge v Sir John Anderson* [1942] AC 206 and *R v Connell; Ex parte The Hetton Bellbird Collieries Ltd* (1944) 69 CLR 407), not within a court's powers. Consider, for instance, the decisions of *Associated Provincial Picture Houses Ltd v Wednesbury Corporation* [1948] 1 KB 223, *Chief Constable of the North Wales Police v Evan* [1982] 3 All ER 141, *Green v Daniels* (1977) 13 ALR 1, and *Attorney-General (NSW) v Quin* (1990) 170 CLR 1, where the courts confirmed this view.

Consider also, however, the decision of *Minister for Immigration and Ethnic Affairs v Conyngham* (1986) 11 FCR 528, where, although the Federal Court stated that the provisions of s 16(1) of the Administrative Decisions (Judicial Review) Act 1977 (Cth) should not be used to force the manner of exercising a discretion on an original decision-maker, it did not conclude that the application of the section should be restricted to judicial review in its general, strict sense. The question, therefore, whether s 16 could be used in certain circumstances to substitute a decision of the court for that of the original decision-maker, was not conclusively resolved.

Activity

Exercise 5.7

What is the difference between a judicial decision and an administrative decision?

Exercise 5.8

What is the difference between a merits review and judicial review?